

22STCV11915 22STCV11915

County: los-angeles

Division: Civil Law and Motion

Department: S27

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Case Number: 22STCV11915 Hearing Date: July 30, 2026 Dept: S27

1. Background

Facts

This is a premises liability case.

Plaintiff Gary Dean Swisher ("Plaintiff") alleges that he was riding his bicycle on the sidewalk owned, controlled, or maintained by Defendant the People of the State of California when his bicycle struck an uneven, raised portion of the sidewalk, causing him to be thrown to the ground and suffer severe injuries. (FAC, Prem.L-1.)

On April 7, 2022, Plaintiff filed this action against Defendants California Department of Transportation, City of Los Angeles, Kaiser Permanente Ventures, LLC, McCarthy Building Companies, Inc., and Does 1 to 40. On April 3, 2022, Plaintiff filed a First Amended Complaint ("FAC") to name the People of the State of California, acting by and through the Department of Transportation.

On April 21, 2022, Defendant the People of the State of California, acting by and through the Department of Transportation, erroneously sued as California Department of Transportation ("Defendant") filed this Motion to Compel Compliance with Deposition Subpoena and Request for Order Awarding Monetary Sanctions Against Deponent in the Sum of \$2,600.00 ("Motion").

No opposition has been filed.

2. Legal

Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).) "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).) A party to an action may bring a motion pursuant to Code Civ. Proc. § 1987.1(a). (Code Civ. Proc., § 1987.1, subd. (b)(1).) "

"In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things." (Board of Registered Nursing v. Superior Court of Orange County (2021) 59 Cal.App.5th 1011, 1030.) "To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena." (Ibid.)

"A deposition subpoena may command any of the following . . . (a) [o]nly the attendance and the testimony of the deponent . . . (b) [o]nly the production of business records for copying . . . (c) [t]he attendance and the testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. . . ." (Code Civ. Proc., § 2020.020, subd. (a)-(c).) "

"For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546 [italics in original].) Generally, all unprivileged information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.)

3. Discussion

Defendant moves for an order compelling Dr. Majid Molaie, M.D. ("Deponent") to appear and produce documents pursuant to a deposition subpoena served on or about February 19, 2026. Deponent was identified and designated as Plaintiff's non-retained expert neurologist. (Rhoads Decl., ¶ 10.) Defendant's subpoena requests (1) any and all medical and office records and reports from the first date of treatment to the present; (2) all billing records and all records of payment and/or discount regarding any billing from the first date of treatment to present; and (3) any and all radiological films, images, and documents from the first date of treatment to present. (Id. at Ex. 2, Attachment 3.)

A. Compliance with Subpoena

Defendant contends to have electronically served Deponent with a deposition subpoena for personal appearance and production of documents and things on February 19, 2026. (Id. at ¶ 4, Ex. 1.) Defendant contends to have emailed and called Deponent's office several times before March 20, 2026, to confirm Deponent's appearance for the deposition. (Id. at ¶ 5.) Defendant contends that Defendant's office never received an objection, motion for protective order, or motion to quash from Deponent or any party. (Id. at ¶ 6.) On March 20, 2026, Deponent failed to appear or produce documents. (Id. at ¶ 7.) Defendant tried again to email Deponent, but to this date Deponent has not contacted Defendant. (Id. at ¶¶ 8-9.)

The Court notes that "written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record." (Cal. Rules of Court, Rule 3.1346.) The proof of service attached to the Motion indicates that the Motion was served on Deponent via mail and email. While Defendant indicates that it spoke with Deponent's receptionist and was told that Deponent would accept service by email (Rhoads Decl., ¶ 3.), given that

the default method of service is by personal service, simply having a receptionist state that email service would be accepted is not sufficient for this Court.

As to the subpoenaed documents and things, Code of Civil Procedure section 2025.450 requires:

(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

(Code Civ. Proc., § 2025.450, subd. (b).)

Here,

Defendant has included a declaration that Defendant has contacted Deponent to inquire about the nonappearance. (See Rhoads Decl.) However, Defendant has not set forth any specific facts showing good cause justifying the production for inspection of any document or thing described in the deposition notice.

Defendant has merely stated that Deponent was identified as a non-retained expert neurologist for Plaintiff. (Rhoads Decl., ¶ 10.) Defendant has not provided any facts as to why the production of the documents is justified or relevant. Accordingly, the Motion is denied as to the subpoenaed documents.

B. Sanctions

Defendant requests the Deponent pay \$500 in sanctions plus \$1,500 in attorney fees incurred for bringing this motion. Given the court's ruling this request for \$500 in sanctions is denied.

Moreover, because Defendant's Motion was not successful as to the subpoenaed documents and the Deponent has not unsuccessfully opposed the Motion, the Court will not impose sanctions in

the amount of \$1,500.

4.

Conclusion

Based on the foregoing, the Court DENIES the Motion to Compel Compliance as to Deponent's appearance at a deposition. The Court DENIES the Motion to Compel Compliance as to the request to compel the requested documents.

Defendant is ordered to give notice.